



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :

- against - :

Police Officer Richard Arroyo :

Tax Registry No. 921933 :

Fleet Services Division :

FINAL

ORDER

OF

DISMISSAL
-----X

Police Officer Richard Arroyo, Tax Registry No. 921933, Shield No. 07788, Social Security No. ending in [REDACTED], having been served with written notice, has been tried on written Charges and Specifications numbered 2016-15687, as set forth on form P.D. 468-121, dated April 28, 2016 and after a review of the entire record, Respondent, having pleaded Guilty to Specification No. 1, is found Guilty. Respondent is found Guilty of Specification No. 2.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Richard Arroyo from the Police Service of the City of New York.


JAMES P. O'NEILL
POLICE COMMISSIONER

EFFECTIVE: May 4, 2017

COURTESY • PROFESSIONALISM • RESPECT



POLICE DEPARTMENT

February 21, 2017

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In the Matter of the Charges and Specifications : Case No.

- against - : 2016-15687

Police Officer Richard Arroyo :

Tax Registry No. 921933 :

Fleet Services Division :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable David S. Weisel
Assistant Deputy Commissioner Trials

APPEARANCE:

For the Department: David H. Green, Esq.
Department Advocate's Office
One Police Plaza, 4th Floor
New York, NY 10038

For the Respondent: Stephen C. Worth, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

Charges and Specifications:

1. Said Police Officer Richard Arroyo, assigned to the 75th Precinct, on or about April 20, 2016, engaged in conduct prejudicial to the good order and efficiency of the Department, to wit: said Police Officer Richard Arroyo, during an integrity test, failed by taking a sum of United States currency without permission or authority to do so.
P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT – GENERAL REGULATIONS
2. Said Police Officer Richard Arroyo, assigned to the 75th Precinct, on or about April 27, 2016, during an official Department interview conducted pursuant to Patrol Guide Section 206-13, did wrongfully make false and misleading statements.
P.G. 203-08, Page 1, Paragraph 1 – MAKING FALSE STATEMENTS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before the Court on December 5, 2016. Respondent, through his counsel, entered a plea of Not Guilty to Specification No. 2. He pleaded Guilty to Specification No. 1 and testified in mitigation of the penalty. The Department called Deputy Inspector Caroline Roe as a witness and Respondent testified on his own behalf. A stenographic transcript of the record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, the Court finds Respondent Guilty of Specification No. 2. Respondent, having pleaded Guilty to Specification No. 1, is found Guilty of Specification No. 1.

FINDINGS AND ANALYSIS

The facts of the underlying incident in this case were uncontested. Deputy Inspector Caroline Roe of the Internal Affairs Bureau testified that on April 20, 2016, a targeted integrity test was conducted on a police officer assigned to the 75 Precinct. In only about four years on the job, the targeted officer had three allegations for excessive force, abuse of authority, or discourtesy or offensive language toward civilians (FADO), plus allegations of failure to take a

police report and failure to respond to a 911 call in a timely manner. None of the allegations involved corruption (Tr. 25-29, 69-71).

Here, the integrity test was a driving under the influence arrest using an undercover officer as the motorist. Because intoxicated drivers often are belligerent, this would present a test of the FADO allegations, as well as an opportunity to take proper police action after a 911 call. Money was used as a factor, as it is in all integrity tests, "just to have it there because . . . you never know what you are going to run across" (Tr. 27-31, 69-72).

Roe indicated that undercover officers approached the target and informed them of an intoxicated driver. The suspect automobile was equipped to record both audio and video. The video presented as evidence (Dept. Ex. 1) actually is a compendium of clips from various cameras and angles. The video begins with an undercover officer recording the scene from a nearby vehicle. Two sector cars from the 75 Precinct are visible, having responded to a dark-colored SUV, the putatively intoxicated undercover's vehicle. Respondent was the target officer's partner that day and they were one of the sectors to respond. Several uniformed officers, including Respondent, are seen at the driver side door of the suspect vehicle. The camera view switches to a vantage point above the front seats, directly above the center console. There is a sum of United States currency visible in the cup holder. Respondent leans in from the driver side and places an aluminum can in the cup holder (Tr. 28, 31-33).

About thirty seconds later in the video, Respondent checks the lift-up compartment of the center console. He then returns to the cup holder and removes the can. Respondent counts the bills from the cup holder with both hands, but removes one bill with his left hand and crumples it into his fist. Respondent backs out of the car. The rest of the compendium is audio only. Respondent tells the motorist that there was cash in the center console and counts it for him. It amounted to \$35. In fact, Roe testified, \$55 in prerecorded money was used in the test.

Respondent informs the motorist that he was going to put the currency in the motorist's pocket (Tr. 34-35, 41, 43-44).

Respondent testified that he was 46 years old. [REDACTED]

[REDACTED] He joined the Department in 1998. Prior to that, he was in the United States Army for eight years as a military police officer. At the time of the incident here, he was assigned as one of the 75 Precinct's neighborhood coordination officers. Respondent's long career included two arrests for bribery. In both cases, arrestees offered Respondent cash or services and Respondent informed his supervisor. It was arranged for Respondent to record the arrestees making the bribes. These arrests led to a letter of appreciation from the Police Commissioner and a commendation, respectively (Tr. 78-85, 96; Respt. Ex. A, letter from Police Commr.; Respt. Ex. B, request for commendation).

Respondent admitted taking the \$20 during the tour in question. He stated that this was the only time he had taken any money. He pleaded that he "was human" and made a mistake (Tr. 78, 87-88). As such, Respondent is found Guilty of Specification No. 1.

The dispute in this matter, aside from penalty, relates to Respondent's official Department interview on April 27, 2016. Generally speaking, according to Roe, Respondent denied taking any money and said that he only counted the currency outside the vehicle in the presence of the motorist and the other officers. Respondent added that he returned any found currency to the motorist. At trial, Respondent admitted that he did not tell the truth during his interview. He claimed that he only knew the interview was to be about missing property, and did not remember until the middle of the interview that he had stolen the \$20 (Tr. 36-38, 88-94).

The Department laid out in a bill of particulars (Ct. Ex. 1) its theory of how Respondent made false and misleading statements in his interview. The following describes the Department's assertions regarding the interview, as guided by the bill of particulars:

- A. Page 18, lines 2-9:** Respondent was asked in the interview what happened after he looked in the vehicle. He stated that he saw money and the motorist's identification. He grabbed both, gave the ID to the arresting officer, and counted the money in front of the motorist and the other officers. "I counted \$35.00" and placed the money in the motorist's pocket. Roe testified at trial that this was false or misleading because there was \$55 in prerecorded money, so "there should have been \$55 given to the undercover, not \$35" (Tr. 40-41, 54-55).
- B. Page 27, lines 11-21:** Respondent agreed in the interview that "[a]ll the money that you came across in your entire tour you gave back to the owner." Roe testified at trial that because \$55 was used and only \$35 was returned, Respondent did not give all the money back to the motorist (Tr. 41-42, 56).
- C. Page 33, lines 10-14:** Respondent narrated that he found the driver's ID and money, "grabbed" both, gave the ID to the arresting officer, counted the money, and put it in the driver's pocket. Roe asserted at trial that this was false or misleading because the money he put in the motorist's pocket "would be \$35, when in fact we utilized \$55." The Advocate leadingly followed up, "So he indicates . . . that he took the money out of the car, gave the accused party *all* of the money, and that's not true?" (emphasis added). Roe agreed (Tr. 42-43, 57).
- D. Page 34, lines 3-7 & 20-21:** Respondent indicated that he counted the money in the back of the vehicle in front of the other officers. Roe asked if that was the first and only time he counted it, and he said yes. Roe made sure, "You never counted it prior to that?" Respondent confirmed that he had not. Roe testified that this was untrue because the video shows Respondent "separated out" the cash inside the vehicle to see how much there was. Roe also asked Respondent in the interview, "And what was the total again?" He said that it was \$35. Roe testified that this was false because "[t]he total we utilized" was \$55 "and \$35 was returned" (Tr. 43-44, 58-60).
- E. Page 40, lines 8-22 & Page 41, lines 1-3:** Roe asked Respondent, "Did you separate any of the money at that location? Did you separate two, three, four bills from the remaining bills?" Respondent answered, "Not - I mean, I just counted it like from one hand to the other." He denied that he "separate[d] it to a different pile," and said he placed the money in the motorist's pocket. Roe clarified that Respondent was talking about "The \$35 one," as opposed to any of the other jobs he responded to that day. Respondent said yes. Roe, however, testified at trial that it was false or misleading for Respondent to say he "didn't count or separate the money out" because the video showed that he "did separate the money out to see what the denominations were." Also, the matter involved \$55, not \$35 (Tr. 44-45, 61-62).

F. Page 42, lines 4-8: In the interview, Respondent denied counting the money inside the car. Roe testified at trial that this was false or misleading because the video showed Respondent separating "to see the different bills. He pushes them out" inside the car, and counted a second time in front of the other officers (Tr. 45-46, 62).

G. Page 43, lines 7-11: Here, Roe asked, "[T]he \$35.00. You take it out of the car all in one hand, whichever hand it is. You walk it back. You count it in front of the police officers, and then you give it back to him." Respondent agreed that this was correct. Roe testified at trial that it was false or misleading because Respondent actually transferred \$20 into one hand (Tr. 46, 63).

H. Page 45, lines 4-8: Respondent was asked in the interview if, during the tour in question, he took money that did not belong to him and failed to voucher it. Respondent denied doing so (Tr. 46).

I. Page 48, lines 1-2: Respondent was asked one last time if he took any money and he said no. Roe testified that this was false or misleading because \$20 of prerecorded money was missing (Tr. 47).

In Roe's view, it was significant whether Respondent handled the money in one or two hands because he took the total of \$55 and separated out \$20 to a separate hand. Both the method and the fact that he stole money were "major detail[s]" to Roe (Tr. 63).

In order to prove a false statement under Patrol Guide § 203-08, the procedure charged here, the Department must demonstrate that the statement was not only false, but also was not a mere denial of an administrative charge of misconduct. This is in contrast to statements that create a "false description of events." See Patrol Guide § 203-08, Note, para. 3. Contrary to the Advocate's argument (Tr. 103), the procedure does not mention anything about "misleading" statements. Only "false" statements are mentioned.

Counsel for Respondent argued that he did not create an alternative version of events. His denials of stealing \$20 were mere denials, and his statement that "he took the money out of the car, came out and counted it and gave it to the . . . undercover" was true. The Advocate argued that the interview showed Respondent "creating or adopting or agreeing with a false

narrative, one in which he never counted the money inside the vehicle . . . one in which he took all of the money from inside the vehicle and gave it to the operator of the vehicle” (Tr. 98, 104).

The interview excerpts above can be divided into several categories. Some were mere denials, such as the last two, statements H and I, in which Respondent was asked if he stole money and said no. Others, like statement B, were mere denials but the wording was reversed. Instead of the investigators asking, for example, “Did you keep any of the money you found for yourself” and Respondent saying no, the investigator asked, “All the money that you came across in your entire tour you gave back to the owner,” and Respondent said yes. This was still a mere denial.

Other statements were literally true but contained elements of deceit. Statements A, C and G were literally true but not completely accurate. Essentially, Respondent gave his narrative of what happened: he found the motorist’s money, took it out of the vehicle, counted it in front of the motorist and the other officers, and gave it to the motorist. All of that was true, Respondent just left out the very pertinent detail that he peeled off \$20 of the motorist’s money inside the car and kept it for himself.

Statements D, E and F do contain a false statement: that Respondent never counted or separated the money inside the car, and only counted it outside in front of the motorist and the other officers. Here, the Court agrees that Respondent created a false description of events. Under Respondent’s version, he could not have taken any money by separating some into a different pile, group of bills, hand, etc. This created the impression that he could not have stolen the money. It went beyond merely denying misconduct into creating a scenario in which the misconduct could not have happened.

This is distinct from suggesting literally true means by which someone else could have engaged in the same misconduct. Cf. Case Nos. 2015-13794 et al. (Jan. 3, 2017) (where officer

was accused of using arrestee's cell phone to contact the arrestee's girlfriend, whom officer previously had arrested, and asking her to meet up and send naked photographs of herself, officer did not create false description of events by stating that the phone was not always in his possession and sometimes was in a secure envelope in a desk).

Respondent's statements are similar to those in *Case Nos. 2010-0218 & -272* (Mar. 26, 2012). There, the accused officer was accused of making a series of false 911 calls about a gun in a bar or club, after the officer had been denied entrance one Halloween night. The respondent's erstwhile girlfriend also worked at the establishment. On the night that the calls began, the respondent had gone to the establishment with a fellow officer from his precinct. The respondent admitted to Department investigators in his first official interview that he had gone there with that officer. At the end of the interview, the investigators told the respondent not to talk to anyone about the investigation. The respondent, however, contacted the other officer. The other officer told investigators this. The respondent was re-interviewed and denied, several times in several ways, speaking to that officer.

The tribunal ruled that this created a false description of events. It should be noted that the investigators were not so interested in knowing whether the respondent had violated their directive. Rather, they wanted to know how deeply the respondent had gone in trying to influence the investigation. As it turned out, the respondent even contacted the telephone switchboard operator at their precinct and asked her to have the officer he went to the club with call him on a non-Department phone. After the respondent's second interview, he called the TS operator again and instructed her to tell investigators that he had only called the precinct to talk to her.

In Respondent's case, the investigators similarly were not interested so much in whether Respondent handled the money into two separate piles. It was merely the method that they

believed he had used to steal the \$20 bill. By stating that he only counted the money outside the vehicle, he created a scenario in which the misconduct could not have occurred. As such, the Court finds Respondent Guilty of Specification No. 2.

PENALTY RECOMMENDATION

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on August 31, 1998. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. The Court has also considered Respondent's post-trial submissions of several letters attesting to his good character and reputation for integrity.

Truly this is a tragic case. An officer with nearly 19 years of dedicated and commended experience, an officer about whom so many have written in support of his character, stole \$20 from a motorist during what he thought was a routine DUI stop. Whether it was a one-time lapse or part of a previously unknown pattern, this act of misconduct has had profound consequences for him, his family and his colleagues. Respondent compounded his misconduct by lying at his official Department interview.

This Court cannot, under these facts, recommend any penalty other than one involving separation from the Department. Pursuant to Administrative Code § 14-115 (a), termination is the only such recommendation this tribunal can make. Cf. Case No. 2014-12548 (Dec. 22, 2015) (nine-year officer with no prior disciplinary history terminated for shoplifting from Target); Case No. 2012-7232 (Feb. 1, 2013) (14-year officer with no history negotiated one year dismissal probation, forfeiture of time, leave, and 60 vacation days, and vested-interest retirement for, inter alia, failing on-duty integrity test by taking \$817 from suspected gambling location, and

destroying alcoholic beverages found at location so as to prevent their further use). Therefore, the Court recommends that Respondent be **DISMISSED** from the Department.

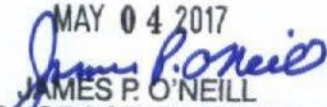
Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner Trials

APPROVED

MAY 04 2017



JAMES P. O'NEILL
POLICE COMMISSIONER

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER RICHARD ARROYO
TAX REGISTRY NO. 921933
DISCIPLINARY CASE NO. 2016-15687

Respondent was appointed to the Department on August 31, 1998. He received an overall rating of 3.5 "Highly Competent/Competent" on his 2016 annual evaluation and 4.5 "Extremely Competent/Highly Competent" on both his 2015 and 2014 evaluations. [REDACTED]

[REDACTED] He has been awarded 32 medals for Excellent Police Duty and six for Meritorious Police Duty.

Respondent was suspended on April 27, 2016, and was placed on modified assignment on May 27, 2016, in connection with the instant case. Respondent also was placed on Level 2 Discipline Monitoring on June 30, 2016. Both statuses remain ongoing. Respondent has no prior formal disciplinary history.

For your consideration.



David S. Weisel
Assistant Deputy Commissioner Trials